Primary Victims

An introductory guide to psychiatric injury in negligence in England and Wales. Personal danger, foreseeable injury and the limits of the primary-victim rule.

1. Begin with the claimant’s own position

An accident may injure a person who was directly involved, a relative who witnessed it, and someone who later heard about it. They do not necessarily have the same claim. In psychiatric-injury cases, a central distinction is between **primary victims** and **secondary victims**. “Primary” does not mean that the person’s suffering is more serious or more deserving.

In the ordinary accident setting, a **primary victim** is personally involved and within the range of foreseeable physical injury. Actual physical injury is not essential. A person who was exposed to danger can escape bodily injury but develop a medically recognised psychiatric illness. [1, 2]

> **Starting question:** Did the defendant’s negligence expose this claimant to foreseeable physical injury in the accident? Do not ask only whether something frightening happened nearby.

2. Three invented examples

A: A negligent driver collides with Hana’s car. She escapes bodily injury but develops a medically diagnosed psychiatric illness caused by the collision. If physical injury was reasonably foreseeable, this is the ordinary setting for the primary-victim rule.

B: Leo watches from a protected place while his sister is injured. He was not personally in danger and did not reasonably believe himself to be. His possible claim requires consideration of the rules for secondary victims; being present does not automatically make him a primary victim.

C: A stranger reads about the collision online and feels upset. That feeling alone is not a medically recognised psychiatric illness, and hearing about an accident does not establish primary-victim status.

3. Negligence still needs to be proved

The classification does not decide every issue. Identify a duty of care owed to the claimant, a breach of that duty, legally recognised damage and a causal connection between the breach and that damage. In a claim for psychiatric illness, ordinary fear, worry or distress alone is insufficient. [1, 2]

Claimant: person bringing the claim. **Defendant:** person or body sued. **Foreseeable:** reasonably capable of being anticipated. **Causation:** the connection between the breach and the injury claimed.

Page v Smith

4. Page v Smith [1995] UKHL 7; [1996] AC 155

Facts: Mr Smith negligently drove across the path of Mr Page's car and a collision followed. Mr Page suffered no bodily injury. He had a long history of a condition described in the judgment as myalgic encephalomyelitis (ME), chronic fatigue syndrome (CFS) or post-viral fatigue syndrome. He was recovering from a recent episode and hoped to return to teaching.

Mr Page alleged that the collision caused a chronic and lasting relapse, leaving him unable to work. The claim therefore involved an existing vulnerability, not simply an unrelated new illness appearing after a minor accident. The medical labels are those used in the litigation; this account does not classify all ME/CFS as psychiatric illness. [1]

5. What legal question did the court decide?

Mr Page was directly involved in the accident and within the range of foreseeable physical injury. The question was whether he also had to establish that **psychiatric injury itself** was reasonably foreseeable. Could the absence of an actual bodily injury defeat his claim?

Outcome: The House of Lords allowed Mr Page's appeal by a majority of three to two. For a primary victim in this accident setting, foreseeable physical injury was sufficient; separate foreseeability of psychiatric injury was unnecessary. The claimant did not need to suffer a bodily injury first. [1]

> **State the rule precisely:** Foreseeable physical injury removes the need for a separate foreseeability inquiry about psychiatric injury in this category. It does not mean that every psychiatric illness is medically predictable, or that negligence and causation are automatically proved.

6. Winning the legal point was not the final causal finding

The House of Lords set aside the Court of Appeal's order and restored the trial order except on causation and costs. It sent the question of causation back to the Court of Appeal. Thus Mr Page won the appeal on the relevant legal principle, but the House of Lords did not itself finally decide the disputed causal issue. [1]

The judgment was delivered on 11 May 1995. The report citation [1996] AC 155 refers to the year of the law report, not a different decision.

Applying the rule carefully

7. Keep three questions separate

Exposure: Was the claimant a primary victim within the relevant accident rule? **Foreseeability:** Was some physical injury reasonably foreseeable? **Causation:** Did the negligence actually cause the illness or an aggravation of it? A “yes” to one question does not mechanically answer the others.

8. Existing vulnerability and the thin-skull principle

A defendant must generally take a victim as found. Once the relevant liability requirements are established, unusual vulnerability does not by itself defeat compensation merely because a more robust person would have suffered less. This is often called the **thin-skull** or **eggshell-skull** principle. Page illustrates its relevance to an unusually vulnerable claimant. [1]

But vulnerability is not a substitute for causation. If an existing illness would have produced the same loss without the accident, that matters. The claimant must identify what the accident caused or worsened; the defendant is not automatically responsible for the claimant’s entire medical history.

9. Presence, employment or rescue is not enough

In *White v Chief Constable of South Yorkshire Police* [1999] 2 AC 455, police officers who helped after the Hillsborough disaster could not obtain compensation simply by calling themselves employees or rescuers. Their claims failed. For the ordinary primary-victim route, exposure to physical danger, or a reasonable belief of such exposure, is important. Mere attendance or assistance is not sufficient. [2]

10. Do not apply Page to every fear of future illness

In the conjoined appeals reported as *Rothwell* [2007] UKHL 39, Mr Grieves’s psychiatric-injury claim failed. His illness arose from fear of possible future asbestos-related disease. The House of Lords distinguished this from the accident that actually occurred in Page and declined to extend Page in that way. [3]

> **A useful sequence:** Identify the negligent event → locate the claimant in relation to the danger → apply the relevant foreseeability rule → establish recognised injury and causation. Do not move straight from “the defendant was careless” to “the claimant must be compensated”.

The primary/secondary distinction is not a universal formula for every psychiatric-injury claim. This guide concerns the ordinary accident category; other contexts can require different analysis.

Check your understanding

1. Must a primary victim actually suffer a physical injury?
Answer: No. Page concerned a claimant who suffered no bodily injury. The relevant question was whether physical injury was reasonably foreseeable.

2. Does Page require separate foreseeability of psychiatric injury?
Answer: Not for a primary victim within its accident rule, once physical injury was reasonably foreseeable. The remaining elements of negligence still matter.

3. Did the House of Lords finally determine causation in Page?
Answer: No. It allowed the appeal on the legal principle but remitted causation to the Court of Appeal.

4. Invented example: a passenger in a negligent collision develops an illness because of an unusual vulnerability. Is that vulnerability an automatic defence?
Answer: No. The thin-skull principle may apply. But the passenger must establish the relevant duty, breach, injury and causal connection.

5. Does a rescuer become a primary victim merely by helping?
Answer: No. White shows that helping or employment alone does not confer that status. The rescuer's own exposure to danger, or reasonable belief in it, must be examined.

6. Does every anxiety about possible future harm fall within Page?
Answer: No. Grieves's unsuccessful claim in Rothwell illustrates the limits of extending the accident rule to fear of a disease that has not occurred.

The central distinction

Primary victim: the claimant is personally involved in the relevant danger. **Secondary victim:** the illness arises through experiencing harm or danger to another person. Do not import Page's foreseeability rule automatically into the second category.

Sources and further reading

[1] *Page v Smith* [1995] UKHL 7; [1996] AC 155, especially Lord Lloyd's majority reasoning and the formal order remitting causation. Judgment.

[2] *White v Chief Constable of South Yorkshire Police* [1998] UKHL 45; [1999] 2 AC 455, also known as *Frost*. See the majority reasoning of Lords Steyn and Hoffmann. House of Lords judgment.

[3] *Rothwell v Chemical & Insulating Co Ltd*, conjoined with *Grieves v F T Everard & Sons Ltd* [2007] UKHL 39; [2008] 1 AC 281, especially Lord Hoffmann at paras 31-33. Discussion of Page and its limits.